

that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion and Declaration, as well as Notice of the 2/24/26, Motion hearing , indicating mail service to Defendant at the address listed on Defendant's Answer as well as other court filings.

The court subsequently provided mail notice to both parties of the 6/2/26, 9am, appearance.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a substantially compliant response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One "Requests for Admission, Set One," of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

9. 9:00 AM CASE NUMBER: L25-07528
CASE NAME: GRANITE TELECOMMUNICATIONS LLC VS. ARTESANAL FOODS, INC.
*HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION OF DEFENDANT
ARTESANAL FOODS, INC. FOR ORDER DEEMING ADMITTED TRUTH OF FACTS AND

**IMPOSING MONETARY SANCTIONS AS TO PLAINTIFF GRANITE TELE COMMUNICATIONS
FILED BY: ARTESANAL FOODS, INC.**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff included the particular facts at issue, “Set One”, in Exhibit A, attached to their Motion, as well as evidence that they served Defendant with the discovery request, and declared that, despite attempts to meet and confer with Defendant about the discovery request – and despite several extensions by which to provide the response - Defendant never responded to the discovery request. (Defendant also, in this Motion, includes discovery requests for document production as well as interrogatories. The court does not find that this Motion is the proper remedy for purported violations of these discovery requests. Moreover, these purported violations are resolved by this court in Defendant’s other motion scheduled for the same day.)

Plaintiff also provided a declaration accounting for attorney fees.

Plaintiff seeks sanctions in the amount of \$1,852.50.

Plaintiff attached a proof of service of this Motion, indicating mail service to counsel for Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff’s Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers (Set One) shall be deemed admitted.

The court finds that attorney fees in the amount of \$1,852.50 are reasonable.

Plaintiff is sanctioned in the amount of \$1,852.50, and this amount shall be paid by Defendant within thirty (30) calendar days of notice of entry of this order.

Defendant to draw and file Order, and to provide written notice of this Order to Plaintiff.

10. 9:00 AM CASE NUMBER: L25-07528

CASE NAME: GRANITE TELECOMMUNICATIONS LLC VS. ARTESANAL FOODS, INC.

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION OF DEFENDANT ARTESANAL FOODS, INC. TO COMPEL DISCOVERY RESPONSES AND FOR SANCTIONS; MEMORANDUM OF POINTS AND AUTHORITIES THEREON AND DECLARATION OF JON WEBSTER FILED BY: ARTESANAL FOODS, INC.**

TENTATIVE RULING:

Defendant filed a Motion to compel responses from the Plaintiff to discovery requests. The Motion also requests sanctions in the amount of \$2,775 for the failure of Plaintiff to respond.

The Motion was timely served by mail on counsel for Plaintiff.

The Motion is unopposed.

Background

The Motion centers on two different discovery requests made of Plaintiff by Defendant^[1]. One request is a production of documents (Request One). The second request consists of interrogatories (Request Two). Both requests were included in Exhibit A, attached to the Motion. Both of the requests had been properly served on counsel for Plaintiff.

Defendant, in its declaration included in the Motion, contends that Plaintiff did not provide any discovery responses by the original deadline. And Defendant attached evidence of communications in their Motion reflecting that they offered deadline extensions to the Plaintiff, and that despite these extensions, Plaintiff still did not offer any response to the discovery requests.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad